

IN THE SENATE

SENATE BILL NO. 1271

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO ABATEMENT OF RATS; AMENDING TITLE 52, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 5, TITLE 52, IDAHO CODE, TO DECLARE CERTAIN RATS A PUBLIC HEALTH AND SAFETY NUISANCE AND TO REQUIRE PROMPT ABATEMENT; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 52, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 5, Title 52, Idaho Code, and to read as follows:

CHAPTER 5

PUBLIC HEALTH AND SAFETY NUISANCES

52-501. RODENTS OF UNUSUAL SIZE -- NUISANCES. (1) The legislature finds that the state of Idaho, in particular its more metropolitan areas, has seen a dramatic increase in the presence of rats, which is especially concerning given their lack of historic presence in Idaho and their ability to easily transport diseases that are transmittable to humans and to cause economic damage to agriculture and property.

(2) (a) The Norway rat and the roof rat (rats), are hereby declared to be:

(i) A public health and safety nuisance, pursuant to the provisions of this section;

(ii) An invasive species for the purposes of chapter 19, title 22, Idaho Code;

(iii) An agricultural pest for the purposes of chapter 26, title 25, Idaho Code; and

(iv) A vermin and public health and welfare pest for the purposes of chapter 28, title 39, Idaho Code.

(b) The public health and safety nuisance created by the presence of such rats in Idaho shall be summarily abated consistent with the provisions of this section, existing statutory authority, and due process requirements.

(3) The director of the department of agriculture shall:

(a) Execute the provisions of this section as expeditiously as possible and to the fullest extent permitted by law;

(b) Coordinate efforts, to the maximum extent possible, with:

(i) The boards of county commissioners wherein the rats are, are suspected to be, or may soon be present;

(ii) Control districts, the boards thereof, and the boards of county commissioners operating pursuant to chapter 26, title 25, Idaho Code;

1 (iii) Abatement districts, the boards thereof, and the boards of
2 county commissioners operating pursuant to chapter 28, title 39,
3 Idaho Code;

4 (iv) Public health districts and the boards thereof, pursuant to
5 chapter 4, title 39, Idaho Code;

6 (v) Any other state agency, department, or political subdivision
7 that the director determines necessary to summarily abate rats in
8 Idaho; and

9 (vi) Any other entity, public or private, that the director de-
10 termines necessary to summarily abate rats in Idaho, including
11 through the promotion of public education materials;

12 (c) Develop and implement a coordinated plan of action by November 1,
13 2026, to summarily abate the rats; and

14 (d) Develop and distribute the public educational material that will
15 assist in eradication of the rats and prevention of their return.

16 (4) (a) The public is encouraged to report, and political subdivisions
17 of the state shall report, the presence of rats to the Idaho invasive
18 species hotline.

19 (b) The director shall collect and compile all reports regarding the
20 presence of rats in order to:

21 (i) Determine the movement and location of the rats;

22 (ii) Determine where abatement is necessary; and

23 (iii) Determine where the department needs assistance to abate the
24 rats.

25 (c) Such reports along with the department's abatement plan, the ac-
26 tions already taken and currently in progress to abate the rats, and
27 educational materials shall be made publicly available on the depart-
28 ment's website.

29 (5) If the director requests assistance from any political subdivision
30 of the state to execute the provisions of this section, the political subdi-
31 vision shall make itself available, to the maximum extent possible.

32 (6) The director is authorized to expend funds pursuant to section
33 22-1912, Idaho Code, to execute the provisions of this section as quickly
34 as possible. Cooperating entities with available funding mechanisms shall
35 share in the cost of abating the rats, to the extent that funds are available.

36 (7) This section may be known and shall be cited as "The Idaho Rodents of
37 Unusual Size Act."

38 SECTION 2. An emergency existing therefor, which emergency is hereby
39 declared to exist, this act shall be in full force and effect on and after its
40 passage and approval.